

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

----- X
RUBEN THOMAS,

Plaintiff,

-against-

THE CITY OF NEW YORK,
NYPD OFFICER TONY PEVERARO,
NYPD OFFICER ROBERT NAPOLI and
NYPD OFFICER JOHN DOE, the last named
defendant being fictitious,

Defendants.

----- X

To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
April 1, 2019

Yours, etc.
SIVIN & MILLER, LLP

By _____
Edward Sivin
Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

To:

-The City of New York, 100 Church Street, New York, NY 10007

-NYPD Officer Tony Peveraro, c/o NYPD 101st Pct., 16-12 Mott Ave, Far Rockaway, NY 11691

-NYPD Officer Robert Napoli, c/o NYPD 101st Pct., 16-12 Mott Ave, Far Rockaway, NY 11691

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

----- X
RUBEN THOMAS,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK,
NYPD OFFICER TONY PEVERARO,
NYPD OFFICER ROBERT NAPOLI and
NYPD OFFICER JOHN DOE, the last named
defendant being fictitious,

Defendants.

----- X

Plaintiff, by his attorneys Sivin & Miller, LLP, complaining of defendants, alleges
as follows, upon information and belief:

THE DEFENDANTS

1. That at all times herein mentioned, defendant The City of New York
(hereinafter “the City”) was and is a municipal corporation, organized and existing under and by
virtue of the laws of the State of New York.

2. That prior to the institution of this action and within ninety (90) days from the
dates when the causes of action accrued herein, a notice of claim and intention to sue was duly
served upon and filed with the defendants on behalf of plaintiff; that this action was not commenced
until the expiration of thirty (30) days after such notice of claim and intention to sue was presented
and defendants have neglected and/or refused to make adjustment or payment thereon, and this
action is being commenced within one year and ninety days after the causes of action accrued
herein.

3. That at all times herein mentioned, the City operated, controlled, and
maintained a police force known as the New York Police Department (hereinafter “the NYPD”).

4. That at all times herein mentioned, defendant NYPD Officer Tony Peveraro (hereinafter “Peveraro”) was and is employed as an officer with the NYPD.

5. That at all times herein mentioned, Peveraro was acting within the course and scope of his employment as an officer with the NYPD.

6. That at all times herein mentioned, Peveraro was acting under color of state law.

7. That at all times herein mentioned, defendant NYPD Officer Robert Napoli (hereinafter “Napoli”) was and is employed as an officer with the NYPD.

8. That at all times herein mentioned, Napoli was acting within the course and scope of his employment as an officer with the NYPD.

9. That at all times herein mentioned, Napoli was acting under color of state law.

10. That at all times herein mentioned, defendant NYPD Officer John Doe (hereinafter “Doe”), whose true name is unknown to plaintiff, was and is employed as an officer with the NYPD.

11. That at all times herein mentioned, Doe was working with and in the presence of Peveraro and Napoli.

12. That at all times herein mentioned, Doe was acting within the course and scope of his employment with the NYPD.

13. That at all times herein mentioned, Doe was acting under color of state law.

14. That all of the causes of action pleaded herein fall within one or more of the exceptions set forth in New York’s Civil Practice Law & Rules § 1602 with respect to joint and several liability.

THE FACTS

15. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

16. That on or about January 25, 2018, in the County of Queens, City and State of New York, plaintiff was forcibly stopped, seized, and searched by Peveraro without probable cause or reasonable suspicion to believe that plaintiff had committed or was about to commit any crime or criminal violation, and without any legal justification.

17. That in response to Peveraro's illegal actions, plaintiff made a complaint with the NYPD and with the Civil Complaint Review Board (CCRB) seeking redress for his grievance against Peveraro.

18. That on or about April 10, 2018, in the County of Queens, City and State of New York, and while plaintiff's complaints against Peveraro were pending, Peveraro, Napoli, and Doe, without probable cause or reasonable suspicion to believe that plaintiff had committed or was about to commit any crime or criminal violation, and without any legal justification, directed plaintiff to stop and pull over the motor vehicle that plaintiff was operating.

19. That Peveraro, in the presence of Napoli and Doe, then forcibly grabbed plaintiff and removed him from his motor vehicle and, without a warrant and without plaintiff's consent, and without any legal justification, searched plaintiff and plaintiff's motor vehicle.

20. That Peveraro, in the presence of Napoli and Doe, without a warrant and without probable cause to believe that plaintiff had committed or was about to commit any crime or criminal violation, then placed plaintiff in handcuffs, arrested plaintiff, and caused plaintiff to be imprisoned at various locations, including a police precinct and Central Booking.

21. That on April 10, 2018, Peveraro also initiated and/or caused to be initiated a criminal prosecution of plaintiff, in which plaintiff was charged with various offenses of which he was innocent and of Peveraro did not have probable cause to believe plaintiff was guilty.

22. That in support of the criminal prosecution, Peveraro executed a sworn, Criminal Court Complaint containing allegations against plaintiff that he knew to be false, and also made various statements to fellow law enforcement officials and to the District Attorney that were not true and that Peveraro knew were not true.

23. That among the false statements made by Peveraro were the accusations that he observed an air freshener hanging from the rear view mirror of plaintiff's vehicle, which obstructed the view of the windshield, that upon approaching plaintiff's motor vehicle he smelled a strong odor of marijuana emanating from plaintiff's vehicle, and that he recovered marijuana residue from inside plaintiff's motor vehicle.

24. That the aforementioned false statements and fabrications by Peveraro constituted material evidence in the prosecution of plaintiff, and evidence that was likely to influence a jury's or Criminal Court judge's decision on plaintiff's guilt or innocence.

25. That the aforementioned actions by Peveraro were undertaken in retaliation for plaintiff having exercised his First Amendment right of free speech and his right to petition the government for a redress of grievances in connection with the January 25, 2018 incident in which Peveraro violated plaintiff's civil rights.

26. That as a result of the false statements and fabrications by Peveraro, plaintiff was required to make multiple court appearances and was otherwise restricted in his liberty and ability to travel.

27. That all criminal charges against plaintiff eventually were dismissed after the court granted plaintiff an adjournment in contemplation of dismissal.

28. That Napoli and Doe observed the illegal and improper actions taken by Peveraro against plaintiff, had reasonable opportunities to intervene to prevent and/or stop those illegal and improper actions, and willfully failed and refused to do so.

29. That defendants' actions were done intentionally, spitefully, and maliciously.

30. That as a result of the aforementioned actions by defendants, plaintiff sustained physical and emotional injuries, endured and will continue to endure pain and suffering and loss of enjoyment of life, incurred and will continue to incur economic loss, was deprived of his liberty and freedom, was damaged in his reputation, and has been otherwise damaged.

31. That upon information and belief, prior to the events alleged herein, Peveraro, Napoli, and Doe had falsely arrested, falsely imprisoned, maliciously prosecuted, and otherwise abused their authority against individuals while in the course and scope of their employment with the NYPD.

32. That upon information and belief, prior to the events alleged herein, the City and the NYPD knew that Peveraro, Napoli, and Doe had falsely arrested, falsely imprisoned, maliciously prosecuted, and otherwise abused their authority against individuals while in the course and scope of their employment with the NYPD.

33. That upon information and belief, prior to the events alleged herein, the City and the NYPD knew that Peveraro, Napoli, and Doe were unfit to act as police officers.

34. That despite the City's and the NYPD's prior knowledge of Peveraro's, Napoli's, and Doe's unfitness and propensities, the City and the NYPD knowingly retained Peveraro, Napoli, and Doe as NYPD officers and failed to take necessary remedial measures, thereby subjecting plaintiff to the officers' improper, illegal, and unconstitutional conduct.

**FIRST CAUSE OF ACTION AGAINST PEVERARO ARISING FROM THE
JANUARY 25, 2018 INCIDENT**

(Illegal Search and Seizure: 42 U.S.C. § 1983)

35. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

36. That the actions of Peveraro during his January 25, 2018 encounter with plaintiff constituted an illegal and unreasonable search and seizure, in violation of rights guaranteed to plaintiff under the Fourth Amendment to the U.S. Constitution, and entitle plaintiff to monetary damages under 42 U.S.C. § 1983.

**SECOND CAUSE OF ACTION AGAINST PEVERARO ARISING FROM THE
APRIL 10, 2018 INCIDENT**

(False Arrest/False Imprisonment Under NY State Law)

37. That the aforesaid actions of Peveraro on April 10, 2018 in forcibly seizing, detaining, handcuffing, arresting, and imprisoning plaintiff constitute a false arrest and false imprisonment of plaintiff, for which Peveraro is liable under NY State law and for which the City is vicariously liability under the doctrine of respondeat superior.

**THIRD CAUSE OF ACTION AGAINST PEVERARO ARISING FROM THE
APRIL 10, 2018 INCIDENT**

(Assault and Battery Under NY State Law)

38. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

39. That the aforesaid actions of Peveraro on April 10, 2018 in forcibly seizing, searching, detaining, handcuffing, arresting, and imprisoning plaintiff constitute an assault and battery of plaintiff, for which Peveraro is liable under NY State law and for which the City is vicariously liability under the doctrine of respondeat superior.

**FOURTH CAUSE OF ACTION AGAINST PEVERARO ARISING FROM THE
APRIL 10, 2018 INCIDENT**

(Illegal Search and Seizure: 42 U.S.C. § 1983)

40. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

41. That the actions of Peveraro during his April 10, 2018 encounter with plaintiff and the subsequent arrest and imprisonment of plaintiff constituted illegal and unreasonable searches and seizures, in violation of rights guaranteed to plaintiff under the Fourth Amendment to the U.S. Constitution, a denial of liberty of plaintiff without due process of law in violation of the Fifth Amendment to the U.S. Constitution, and an abridgement of the privileges and immunities of plaintiff, a denial of liberty of plaintiff without due process of law, and a denial of equal protection to plaintiff in violation of the Fourteenth Amendment to the U.S. Constitution, and entitle plaintiff to monetary damages under 42 U.S.C. § 1983.

**FIFTH CAUSE OF ACTION AGAINST PEVERARO ARISING FROM THE
APRIL 10, 2018 INCIDENT**

(Violation of First Amendment Rights: 42 U.S.C. § 1983)

42. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

43. That the actions of Peveraro during his April 10, 2018 encounter with plaintiff and the subsequent arrest, imprisonment, and prosecution of plaintiff were done in retribution for plaintiff having exercised his right to free speech and his right to petition the government for redress of grievances, in violation of rights guaranteed to plaintiff under the First Amendment to the U.S. Constitution, and entitle plaintiff monetary damages under 42 U.S.C. § 1983.

**SIXTH CAUSE OF ACTION AGAINST NAPOLI and DOE ARISING FROM THE
APRIL 10, 2018 INCIDENT**

(42 U.S.C. § 1983: Fourth, Fifth and Fourteenth Amendment Violations,
Based on Failure to Intervene)

44. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

45. That the aforesaid actions by Napoli and Doe in failing to intervene to prevent and/or stop the aforesaid improper conduct of Peveraro constitute unreasonable and illegal seizures of plaintiff in violation of the proscription against unreasonable searches and seizures contained in the Fourth Amendment to the U.S. Constitution, a denial of liberty of plaintiff without due process of law in violation of the Fifth Amendment to the U.S. Constitution, and an abridgement of the privileges and immunities of plaintiff, a denial of liberty of plaintiff without due process of law, and a denial of equal protection to plaintiff in violation of the Fourteenth Amendment to the U.S. Constitution, and entitle plaintiff to recover damages pursuant to 42 U.S.C. § 1983.

**SEVENTH CAUSE OF ACTION AGAINST PEVERAO ARISING FROM THE
APRIL 10, 2018 INCIDENT**

(42 USC § 1983 Claim Based on Denial of Right to Fair Trial)

46. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

47. That the aforesaid actions by Peveraro in fabricating evidence and making false statements in support of plaintiff's prosecution constitute a denial of plaintiff's right to a fair trial, in violation of plaintiff's rights under the Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, and entitle plaintiff to recover monetary damages under 42 U.S.C. § 1983.

EIGHTH CAUSE OF ACTION AGAINST THE CITY
(Negligent Hiring, Training, Supervision, and Retention)

48. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

49. That the aforesaid actions by Peveraro, Napoli, and Doe and the resulting injuries to plaintiff followed and were the result of the negligence of the City in its hiring, training, supervision, and retention of Peveraro, Napoli, and Doe.

NINTH CAUSE OF ACTION AGAINST THE CITY
(Monell Claim: Deliberate Indifference)

50. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

51. That the aforesaid actions by Peveraro, Napoli, and Doe and the resulting injuries to plaintiff followed and were the result of a deliberate indifference by the City and the NYPD to an ongoing pattern of conduct by Peveraro, Napoli, and Doe in which these officers violated the constitutional rights of citizens of the State of New York.

52. That by virtue of the foregoing, plaintiff is entitled to recover monetary damages from the City under 42 U.S.C. § 1983, pursuant to *Monell v. Dep't of Social Servs. Of N.Y.C.*, 436 U.S. 658.

WHEREFORE, plaintiff demands judgment against defendants on the foregoing causes of action in the form of compensatory damages in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and plaintiff also demands punitive damages against Peveraro, Napoli, and Doe in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and plaintiff also demands attorney's fees against all defendants

pursuant to 42 USC § 1988, and the costs and disbursements of this action.

Dated: New York, New York
April 1, 2019

Yours, etc.
SIVIN & MILLER, LLP

By



Edward Sivin
Attorneys for Plaintiff
20 Vesey Street, Suite 1400
New York, NY 10007
(212) 349-0300

VERIFICATION

EDWARD SIVIN, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

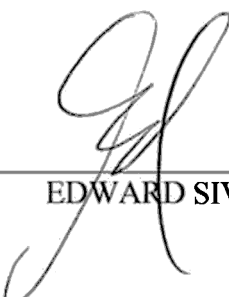
That I am the attorney for the plaintiff(s) in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff(s) is that plaintiff(s) does not reside in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff(s) file maintained by your affirmant's office.

Dated: New York, New York
April 1, 2019



EDWARD SIVIN

Index No.

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Plaintiff,

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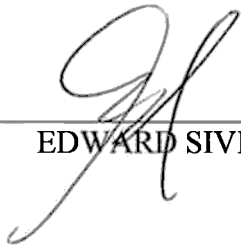
VERIFIED COMPLAINT

SIVIN & MILLER, LLP
Attorneys for Plaintiff
20 Vesey Street, Suite 1400
New York, NY 10007
(212) 349-0300
FAX (212) 406-9462

Certification Pursuant to 22 NYCRR §130-1.1a

Edward Sivin hereby certifies that, pursuant to 22 NYCRR § 130-1.1a, the enclosed papers are not frivolous nor frivolously presented.

Dated: New York, New York
April 1, 2019



EDWARD SIVIN